

TERMS OF SERVICE

e-citizen Ghana

Contents

These Terms are organised into: scope and definitions; account rules; verification requests; consent and lawful purpose; payments and refunds; results and source records; privacy and security; suspension and termination; intellectual property; liability; complaints and governing law.

1. About these Terms

These Terms of Service govern access to and use of e-citizen Ghana, including e-citizen.africa/gh, related websites, mobile applications, dashboards, reports, communications, APIs and verification services made available by Biosec Solutions Limited ('Biosec', 'we', 'us' or 'our').

By creating an account, accepting these Terms, paying for a service, submitting a verification request, accessing a result or otherwise using the Platform, you enter a binding agreement with Biosec. The applicable Privacy Notice and any service-specific notice form part of that agreement.

Where a separately signed enterprise, API, government or institutional agreement applies, that agreement prevails only to the extent of a direct conflict.

2. About the Platform

e-citizen Ghana is a private identity and information verification platform. It is not a government portal and Biosec is not a government authority.

The Services currently offered are Ghana Card (Ghana ID) verification and vehicle identification number (VIN) verification. Each Service remains subject to source availability, required approvals, the provider's authority and the permitted-use terms of the relevant Source Institution. Biosec will update the Platform and applicable legal notices before introducing another verification category.

The Platform may transmit a request to and return information from a government authority, statutory body, licensed database operator, vehicle-information provider, payment provider or other authorised source ('Source Institution'). Biosec does not create or control the underlying official record.

Biosec does not ordinarily connect directly to the underlying government or statutory database. Verification Requests are routed through contracted verification and data-access providers, which may include Smile ID, Prembly IdentityPass and Mono, depending on the Service and availability. A provider may access a Source Institution directly or through an authorised upstream partner.

Biosec undertakes provider due diligence and seeks written and contractual assurances concerning lawful source access, permitted onward disclosure to Biosec and authorised users, confidentiality, security, retention, audit, incident notification and cross-border processing. A provider or Source Institution may act as an independent controller for parts of the flow and may apply its own legally required notice or conditions.

e-citizen.africa/gh • gh-info@e-citizen.africa

3. Key definitions

'Account' means a registered user profile. 'Business User' means a person using the Platform for an organisation. 'Personal Data' has the meaning given by applicable data-protection law. 'Verification Request' means a search or authentication request submitted through the Platform. 'Verification Result' means the response, report, match, no-match, status or error returned. 'Verification Subject' means the person to whom the requested information relates. 'Service' means a verification or related function offered through the Platform.

4. Eligibility and electronic acceptance

You must be at least 18 years old and legally capable of entering a binding agreement to create an Account or purchase a Service. A parent, guardian or other authorised adult must use their own Account where a lawful Service concerns a child or person lacking legal capacity.

If you act for an organisation, you confirm that you have authority to bind it. Electronic acceptance, receipts, notices and records satisfy writing requirements to the extent permitted by law.

5. Account and security

Provide complete and accurate registration information and keep it current. Do not create an Account using another person's identity or contact details without lawful authority.

Keep passwords, one-time passwords and authentication devices confidential; do not share an individual Account; use multi-factor authentication where offered; and notify gh-info@e-citizen.africa promptly of suspected unauthorised access.

You are responsible for activity caused by your acts, omissions, credential sharing or failure to use reasonable security. You are not responsible for activity caused solely by a security failure within systems controlled by Biosec. We may temporarily lock an Account while investigating suspected compromise, fraud or unlawful use.

6. How verification services work

The typical process is: select a Service; enter search criteria and the declared purpose; complete payment; obtain or demonstrate any required authority or consent; transmit the request to the relevant Source Institution; and receive the available result or status.

The request may be transmitted from Biosec's systems in Nigeria to a contracted provider and, where applicable, an upstream provider or Source Institution in Ghana or another permitted location. The response returns through that chain to the Platform. Biosec limits the fields transmitted to those reasonably required for the selected Service.

A Service description may state additional completion criteria, access periods, consent steps, permitted purposes, fees and refund rules. Review it before payment.

7. Lawful purpose, authority and user assurances

For every Verification Request, you warrant that you have a specific lawful purpose; are authorised to submit the criteria and obtain the result; have obtained any consent or permission required by law or the Source Institution; have entered accurate information; and will use and disclose the result only for the declared purpose.

You must retain reasonable evidence of purpose, authority and consent. Biosec may request that evidence, suspend a request or Account, preserve records, or report suspected misuse where required or reasonably necessary.

Do not use a result as the sole basis for a decision significantly affecting a person where applicable law requires further assessment, notice, human review or an opportunity to challenge the record.

8. Prohibited use

You must not submit unlawful or unauthorised searches; falsify or bypass consent, authentication, payment or security controls; impersonate a Verification Subject; use stolen identifiers; scrape, bulk-query, reverse engineer, overload or disrupt the Platform; build a database from results; sell or republish results without written authority; alter results misleadingly; or use information for fraud, harassment, intimidation, discrimination, unlawful surveillance or crime.

You must comply with Data Protection Act, 2012 (Act 843), consumer-protection, electronic-transactions, cybersecurity and other applicable laws.

9. Consent and Verification Subjects

Some Services require the Verification Subject to approve a request using a registered telephone number, email, one-time password, authentication process or another affirmative method. Other Services may rely on another lawful basis where consent is not required.

Consent must be freely given, specific, informed and unambiguous. Silence, inactivity, deception or pre-ticked boxes do not constitute valid consent. A Verification Subject may refuse or withdraw consent, without invalidating processing lawfully completed before withdrawal.

A consent-based Service may fail where the Verification Subject cannot access the contact details held by the Source Institution, does not respond or refuses consent.

10. Verification Results and source records

Biosec aims to transmit requests accurately and return the response received from the Source Institution. The underlying record is supplied and maintained by that institution.

A result is normally a snapshot at the time of the request, may later change, and is not an official certificate unless expressly described as one. A match does not by itself prove that a person presenting information is physically the same person in the source record unless the Service includes an appropriate authentication step.

Report a suspected Platform transmission or display error promptly. A dispute concerning the underlying record may need to be directed to the Source Institution; Biosec will provide reasonable assistance but cannot amend a record it does not control.

11. Fees, payments and taxes

Prices are displayed before payment and may be stated in Ghana cedis (GHC), United States dollars or another supported currency. You authorise the payment provider to debit the selected method. Currency conversion, mobile-money, bank, card-network or gateway charges may be imposed by third parties.

Biosec is the contracting operator and merchant from Nigeria unless the checkout identifies another merchant or collection partner. Displaying a price in local currency or using a local payment channel does not mean that Biosec has a company incorporated in Ghana.

Prices may include or exclude taxes as indicated. Biosec may change future prices, but a change does not alter a completed purchase. Keep the transaction reference and report duplicate or disputed debits promptly.

12. Refunds, reversals and service credits

A completed and correctly transmitted search may be chargeable even if it returns no match, limited data or an unfavourable result, where that was disclosed before payment. A wrong identifier entered by the user is normally non-refundable once transmitted.

Biosec will ordinarily re-perform, credit or refund where payment was taken but no request was initiated, a duplicate debit occurred, or a failure within systems controlled by Biosec prevented delivery. For source downtime, failed consent delivery or gateway delay, the remedy shown in the service notice may be retry, wallet credit, partial refund or full reversal.

Refunds are returned through the original channel where practicable and may take the payment provider's processing period. Mandatory consumer rights are not excluded.

13. Organisational users

A Business User must ensure that only trained and authorised personnel use the Platform; assign individual credentials where available; maintain internal access controls; define permitted purposes; prevent unauthorised disclosure; and promptly remove access when a person changes role or leaves.

The organisation is responsible for its authorised users and must cooperate with audits or investigations reasonably required by Biosec, a Source Institution or a regulator.

14. Privacy, confidentiality and downloaded results

Personal Data is handled as described in the e-citizen Ghana Privacy Notice and applicable law. You must protect results with safeguards appropriate to their sensitivity, limit access, avoid sending them through insecure channels, and delete them when no longer needed.

The fact that the Platform permits download, screenshot or sharing does not authorise disclosure. You are responsible for lawful handling after a result is delivered to you.

15. Availability, changes and third parties

Services depend on telecommunications, payment networks, Source Institutions and other systems outside Biosec's control. We do not guarantee uninterrupted availability or a particular completion time unless expressly stated.

We may add, modify, suspend or withdraw a Service for security, legal, regulatory, commercial or source-access reasons. Material adverse changes will be notified where reasonably practicable. Third-party websites and services have their own terms.

16. Suspension and termination

We may suspend or terminate access immediately where we reasonably suspect fraud, unlawful searches, security threats, non-payment, breach of these Terms, a Source Institution instruction or a legal requirement. Where appropriate, we will provide notice and an opportunity to explain or appeal.

You may stop using the Platform and request Account closure. Closure does not erase records that must be retained for law, audit, security, disputes or legal claims. Pending refunds and valid wallet balances will be handled under the applicable service terms and law.

17. Intellectual property

The Platform, software, design, text, graphics, reports, trademarks and other materials are owned by or licensed to Biosec. We grant you a limited, non-exclusive, revocable and non-transferable licence to use the Platform and legitimately obtained results for the permitted purpose.

Do not copy, modify, distribute, reverse engineer, remove notices from or commercially exploit Platform materials except as expressly authorised or permitted by law. A Source Institution retains rights in its records, marks and materials.

18. Warranties and responsibility

The Platform is provided on an 'as available' basis. To the extent permitted by law, Biosec does not warrant that Source Institution records are complete, current or error-free, or that every request will succeed.

Nothing excludes obligations that cannot lawfully be excluded, including liability for fraud, wilful misconduct, gross negligence where applicable, death or personal injury caused by negligence, mandatory consumer remedies, or data-protection responsibility that cannot be limited.

19. Limitation of liability and indemnity

To the extent permitted by law, Biosec is not liable for indirect, incidental, special or consequential loss, lost profits or business interruption arising from use of the Platform. For a paid consumer Service, Biosec's aggregate contractual liability for the affected transaction will ordinarily not exceed the amount paid for that Service, except where law requires otherwise.

A Business User will indemnify Biosec against third-party claims arising from that user's unlawful request, lack of authority, unauthorised disclosure, misleading alteration of a result or material breach of these Terms, except to the extent caused by Biosec's own breach or wrongdoing.

20. Complaints and disputes

Contact info@biosec.com.ng for service complaints and gh-info@e-citizen.africa for privacy matters. Include the Account, transaction reference, date, Service and requested remedy. We will investigate fairly and may ask for supporting information.

Privacy complaints may also be submitted to the Data Protection Commission of Ghana (DPC) through its current official channel at dataprotection.org.gh. Consumer complaints may be taken to the competent consumer authority or court as permitted by law.

21. Governing law and general terms

These Terms and the contract with Biosec are generally governed by the laws of the Federal Republic of Nigeria. This choice does not exclude any mandatory consumer, privacy, data-protection or other rights that apply to you or to processing in Ghana and cannot lawfully be waived. Courts of competent jurisdiction in Nigeria have jurisdiction over disputes with Biosec, without preventing a consumer or data subject from using any mandatory local forum, regulator or remedy available under applicable law.

If a provision is invalid, the remaining provisions continue. Delay in enforcing a right is not a waiver. You may not assign your Account without consent. Biosec may assign the agreement as part of a reorganisation, financing, merger or transfer of the relevant business, subject to law and notice where required.

The latest version is published on the Platform. Material changes will be communicated where reasonably practicable. Continued use after the effective date constitutes acceptance, but changes do not retrospectively remove accrued rights.

22. Contact

Biosec Solutions Limited (RC 901419)
Data Protection Officer: info@biosec.com.ng
General support: gh-info@e-citizen.africa
Platform: e-citizen.africa/gh